

5.

CASE #	CASE NAME	HEARING NAME
CVPS2501236	SANCHEZ VS HAKIM ISAC	MOTION TO BE RELIEVED AS COUNSEL FOR ALFREDO SANCHEZ

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, July 21, 2026 at 8:30 a.m., Department PS2.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2505408	BONILLA NAVA VS VINTAGE ASSOCIATES, INC.	MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA BY VINTAGE ASSOCIATES, INC.

Tentative Ruling: Granted.

Responding non party Hope & Healing Counseling Services is ordered to produce responsive documents within 15 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is an employment case. On 7/24/2025, Leticia Bonilla Nava ("Plaintiff") filed a complaint against Vintage Associates, Inc. ("Defendant") asserting the following causes of action: (1) sexual harassment; (2) disability discrimination; (3) failure to accommodate; (4) failure to engage in the interactive process; (5) retaliation; (6) failure to prevent and correct discrimination, harassment, and retaliation; and (7) wrongful constructive termination in violation of public policy.

Defendant now moves the court to compel third-party Hope & Healing Counseling Services ("Hope") to produce documents. Specifically, the documents requested are mental health records that Defendant states go to Plaintiff's claim of mental and emotional injuries, including distress, anxiety and depression, as well as continued ongoing psychological injuries. Defendant states Hope asked for an authorization signed by Plaintiff to release the records, but Plaintiff refused to do so. In response, Hope objected to the production of documents under the psychotherapist-patient privilege.

Hope filed an opposition to the motion, stating they are licensed psychotherapists and thus, without a signed authorization from Plaintiff, must assert the psychotherapist-patient privilege. Hope also requests that any determination of what records are deemed to be relevant be done by the court or the parties, "...as it would be outside the scope of [Hope's] role to make legal determinations as to what records (or portion thereof) may be determined to pertain to Plaintiff's claims...." (Hope's Opposition, p. 6:8-10.) Finally, Hope requests that to the extent the parties also want a deposition, "...the issue of testimony...be determined at the time to avoid the need for future court intervention." (*Id.* at p. 6:16-18.)

Plaintiff did not file any opposition to the motion.

Motion to Compel 3rd Party

Discovery may be obtained from a nonparty by oral deposition, written deposition, or a deposition for production of business records. (CCP § 2020.010.) "[T]he process by which a nonparty is required to provide discovery is a deposition subpoena." (CCP § 2020.010(b).) Personal service of a deposition subpoena obligates any California resident to appear, testify and produce the requested documents, and to appear in any proceedings to enforce the discovery. (CCP §